

In Chambers.

Civil Misc. Modification Application No.225628 of 2009

In

Case :- WRIT - C No. - 36128 of 2009

Petitioner :- Ram Raja Mineral'S And Another

Respondent :- Dakshinanchal Electricity Distribution Corporation Ltd. & An

Petitioner Counsel :- Kartikeya Saran,Ashok Rai

Respondent Counsel :- Rajesh Tripathi

Hon'ble Ashok Bhushan,J.

Hon'ble B.K. Narayana, J.

Heard Sri A.B. Saran, learned Senior Advocate, for the applicant and Sri Rajesh Tripathi appearing for the respondents.

This is an application praying for modification of the order dated 24th July, 2009 by which order the writ petition was disposed of. It has been prayed by the modification application that the order be suitably modified directing the respondents to calculate the charges as per their own M.R.I. report and adjust the payment made by the applicant-petitioner and/or pass such other and further order as this Court deems fit and proper.

The writ petition was disposed of by judgment and order dated 24th July, 2009 giving liberty to the applicant to make a complaint in accordance with Paragraph 6.5 of the U.P. Electricity Supply Code, 2005 along with deposit of average of electricity bill of last six months.

Sri Rajesh Tripathi, learned counsel for the respondents, submits that applicant's complaint has now been disposed of finally by order dated 22nd August, 2009 copy of which order has been filed along with the counter affidavit.

Learned counsel for the applicant submits that applicant filed a writ petition challenging the said order being Writ Petition No.43792 of 2009 praying for quashing the demand of Rs.3,18,178/- in the bill and Rs.3,49,408/- made in the letter dated 4th August, 2009. The said writ petition was permitted to be withdrawn with liberty to move an application in this writ petition. Consequently, this application has been filed.

After having heard the learned counsel for the parties, we are of the view that subsequent order, which was passed on 22nd August, 2009, gives fresh cause of action to the petitioner and the issues raised now in this application require consideration of issues, which have not been adjudicated or decided by us in our order dated 24th July, 2009. Ends of justice be served in giving liberty to the applicant to challenge the order dated 22nd August, 2009 in accordance with law.

The application is disposed of accordingly.

Order Date :- 1.4.2010

Rakesh